

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session on April 6, 2021, commencing at 6:00pm, in the Board Room at 6638 Mill Road, Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION AUTHORIZING CHANGE ORDERS TO THE EXISTING CONTRACT WITH GARDINER SERVICES COMPANY THROUGH PARTICIPATION IN A CONTRACT OF THE OHIO SCHOOLS COUNCIL IN AN AMOUNT NOT TO EXCEED \$1,250,000.

WHEREAS, pursuant to the procedures of Ohio Revised Code Section 153.65 through 153.571, the Ohio Schools Council, a regional council established under Chapter 167 of the Revised Code (the “COG”), has entered into a contract with Gardiner Services Company (“Design-Builder”) that allows for the Design-Builder, through its contract with the COG, to provide design-build services for HVAC improvements and upgrades to the COG’s school district members; and

WHEREAS, this Board has previously entered into a contract through the COG with Gardiner Services Company for the purpose of designing and procuring HVAC improvements and upgrades; and

WHEREAS, the District is expected to receive a federal funding through the Elementary and Secondary School Emergency Response Act (ESSER) for HVAC improvements in the amount of \$1,250,000; and

WHEREAS, the District is still evaluating proposals from Gardiner for how best to spend that funding; and

WHEREAS, many elements of HVAC equipment require 12 weeks or more of lead time requiring the District to commit to improvements as soon as possible in order to complete the work during the Summer Recess.

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

Section 1. The Treasurer of this Board is hereby authorized to sign, acknowledge and deliver, in the name of and on behalf of the School District, amendments for HVAC design-build services provided (i) the Director of Business Services supports the amendment, (ii) such an amendment can be funded through the ESSER Funds, (iii) the amendment does not exceed that funding, and (iv) the Treasurer and Director of Business Services provide a report to the Board on the work to be completed.

Section 2. The Treasurer of this Board and the Superintendent, or such other School District officials as shall be designated by those officials, as appropriate, are each authorized and directed to sign any certificates or documents, and to take such other actions as are desirable, advisable, necessary or appropriate, to consummate the transactions contemplated by this Resolution.

Section 3. This Board finds and determines that all formal actions of this Board and any of its committees concerning and relating to the adoption of this Resolution were adopted in an open meeting of this Board or committees, and that all deliberations of this Board and any of its committees that resulted in those formal actions were in meetings open to the public, in compliance with the law.

Section 4. This Resolution shall be in full force and effect from and immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the Resolution, the vote was as follows:

TREASURER'S CERTIFICATE

The foregoing is a true and correct excerpt from the minutes of the regular meeting of the Board of Education of the Brecksville-Broadview Heights City School District, Ohio, held on April 6, 2021.

Dated: _____, _____

Treasurer, Board of Education
Brecksville-Broadview Heights City School District,
Ohio